

C.A. No. 23-13396

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION AND CITADEL SECURITIES LLC,

Petitioners,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,

Respondent,

THE NASDAQ STOCK MARKET, LLC, ET AL., AND
CONSOLIDATED AUDIT TRAIL, LLC,

Intervenors.

On Petition for Review of an Order of the
United States Securities and Exchange Commission
SEC Release No. 34-98290

**NOTICE OF INTENT TO PARTICIPATE IN ORAL ARGUMENT OF
INTERVENOR CONSOLIDATED AUDIT TRAIL, LLC**

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**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Undersigned counsel represents Intervenor Consolidated Audit Trail, LLC.

Pursuant to Eleventh Circuit Rule 26.1-1 through -3 and Federal Rule of Appellate Procedure 26.1, undersigned counsel hereby certifies that, to the best of his knowledge, the following persons and entities have an interest in this case:

1. Alford, Rep. Mark, *Amicus Curiae*;
2. Alternative Investment Management Association, *Amicus Curiae*;
3. Altman, Jennifer G., *Counsel of Record for Intervenor New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
4. American Free Enterprise Chamber of Commerce, *Amicus Curiae*;
5. American Securities Association, *Petitioner*;
6. ArentFox Schiff LLP, *Counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
7. Ashbrook Byrne Kresge LLC, *Counsel for Amici Curiae S.P. Kothari and James Overdahl*;
8. Bacon, Rep. Don, *Amicus Curiae*;
9. Bailey, Andrew, *Counsel for Amicus Curiae State of Missouri*;
10. Ballard Spahr LLP, *Counsel for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
11. Baltz, Brian J., *Counsel for Amicus Curiae Futures Industry Association*;
12. Barbero, Megan, *Counsel for Respondent*;

13. Barr, William P., *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
14. Bash, John F., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
15. Berman, Ari M., *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
16. Berry, Jonathan, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
17. Bird, Brenna, *Counsel for Amicus Curiae State of Iowa*;
18. Blask, Ariel, *Counsel for Amicus Curiae Futures Industry Association*;
19. Boden, Anastasia, *Counsel for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
20. Boozman, Sen. John, *Amicus Curiae*;
21. Borse Dubai Limited, *Owner of 10% or Greater Interest in Nasdaq, Inc.*;
22. BOX Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
23. Boyden Gray PLLC, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
24. Boyle, Gregory M., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
25. Braun, Sen. Mike, *Amicus Curiae*;
26. Bronni, Nicholas J., *Counsel of Record for Amici Curiae 23 States*;
27. Carr, Chris, *Counsel for Amicus Curiae State of Georgia*;
28. Cato Institute, *Amicus Curiae and Counsel for Amicus Curiae Investor Choice Advocates Network*;

29. Cboe BYX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
30. Cboe BZX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
31. Cboe C2 Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
32. Cboe EDGA Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
33. Cboe EDGX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
34. Cboe Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
35. Cboe Global Markets, Inc. (BATS: CBOE), *Indirect Owner of 10% or Greater Interest in Intervenor Consolidated Audit Trail, LLC, and Direct or Indirect Parent Company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
36. Chenoweth, Mark S., *Counsel for Amicus Curiae New Civil Liberties Alliance*;
37. Citadel Securities GP LLC, *Parent Company of Petitioner Citadel Securities LLC*;
38. Citadel Securities LLC, *Petitioner*;
39. Coleman, Russell, *Counsel for Amicus Curiae Commonwealth of Kentucky*;
40. Collins, Rep. Mike, *Amicus Curiae*;
41. Committee on Capital Markets Regulation, *Amicus Curiae*;
42. Commonwealth of Kentucky, *Amicus Curiae*;
43. Commonwealth of Virginia, *Amicus Curiae*;

44. Competitive Enterprise Institute, *Amicus Curiae*;
45. Conley, Michael A., *Counsel for Respondent*;
46. Connolly, J. Michael, *Counsel of Record for Petitioner American Securities Association*;
47. Consolidated Audit Trail, LLC, *Intervenor*;
48. Consovoy McCarthy PLLC, *Counsel for Petitioner American Securities Association*;
49. Cotton, Sen. Tom, *Amicus Curiae*;
50. Cramer, Sen. Kevin, *Amicus Curiae*;
51. Daines, Sen. Steve, *Amicus Curiae*;
52. Deutsch, Elizabeth B., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
53. Financial Industry Regulatory Authority, Inc., *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
54. Fitch, Lynn, *Counsel for Amicus Curiae State of Mississippi*;
55. Fitzgerald, Rep. Scott, *Amicus Curiae*;
56. Flowers, Benjamin M., *Counsel of Record for Amici Curiae S.P. Kothari and James Overdahl*;
57. Formella, John M., *Counsel for Amicus Curiae State of New Hampshire*;
58. Francisco, Noel J., *Counsel of Record for Petitioner Citadel Securities LLC*;
59. Futures Industry Association, *Amicus Curiae*;
60. Gershengorn, Ian Heath, *Counsel of Record for Intervenor Consolidated Audit Trail, LLC*;
61. Greenberg, Dan, *Counsel for Amicus Curiae Competitive Enterprise*

Institute;

62. Greenwalt, Paul E. III, *Counsel of Record for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.;*
63. Griffin, Tim, *Counsel for Amicus Curiae State of Arkansas;*
64. Hagerty, Sen. Bill, *Amicus Curiae;*
65. Hardin, Tracey A., *Counsel for Respondent;*
66. Hilgers, Michael T., *Counsel for Amicus Curiae State of Nebraska;*
67. Hill, Rep. French, *Amicus Curiae;*
68. Hopen, David A., *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;*
69. Hoyt, Joshua T., *Counsel for Petitioner Citadel Securities LLC;*
70. Intercontinental Exchange, Inc. (NYSE: ICE), *Indirect Owner of 10% or Greater Interest in Intervenor Consolidated Audit Trail, LLC, and Indirect Parent Company of Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.;*
71. International Securities Exchange Holdings, Inc., *Parent Company of Intervenors Nasdaq GEMX, LLC, Nasdaq ISE, LLC, and Nasdaq MRX, LLC;*
72. Investment Company Institute, *Amicus Curiae;*
73. Investor AB (Nasdaq Stockholm: INVE B), *Owner of 10% or Greater Interest in Nasdaq, Inc.;*
74. Investor Choice Advocates Network, *Amicus Curiae;*

75. Investors Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
76. Jackley, Marty, *Counsel for Amicus Curiae State of South Dakota*;
77. Jacobs, Dylan L., *Counsel for Amicus Curiae State of Arkansas*;
78. Jenner & Block LLP, *Counsel for Intervenor Consolidated Audit Trail, LLC*;
79. Jones Day, *Counsel for Petitioner Citadel Securities LLC*;
80. Kastenbergh, Stephen J., *Counsel of Record for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
81. Katsiff, Timothy D., *Counsel for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
82. Kennedy, Sen. John, *Amicus Curiae*;
83. Kennedy, Jordan A., *Counsel for Respondent*;
84. Knudsen, Austin, *Counsel for Amicus Curiae State of Montana*;
85. Kobach, Kris W., *Counsel for Amicus Curiae State of Kansas*;
86. Kothari, S.P., *Amicus Curiae*;
87. Kumar, Neal, *Counsel of Record for Amicus Curiae Futures Industry Association*;
88. Labrador, Raúl R., *Counsel for Amicus Curiae State of Idaho*;
89. Lantieri, Paul III, *Counsel for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
90. Lipshutz, Brian M., *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association*,

Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;

91. Little, Margaret A., *Counsel for Amicus Curiae New Civil Liberties Alliance;*
92. Long-Term Stock Exchange, Inc., *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
93. Loudermilk, Rep. Barry, *Amicus Curiae;*
94. Lucas, Brinton, *Counsel for Petitioner Citadel Securities LLC;*
95. MacLean, Matthew J., *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.;*
96. Managed Funds Association, *Amicus Curiae;*
97. Marks, William T., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.;*
98. Marshall, Jonathan J., *Counsel for Intervenor Consolidated Audit Trail, LLC;*
99. Marshall, Steve, *Counsel for Amicus Curiae State of Alabama;*
100. Matro, Daniel E., *Counsel of Record for Respondent U.S. Securities and Exchange Commission;*
101. McCotter, R. Trent, *Counsel of Record for Amicus Curiae American Free Enterprise Chamber of Commerce;*
102. MEMX LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
103. Miami International Securities Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
104. MIAX Emerald, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*

105. MIAX PEARL, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
106. MIAX Sapphire, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
107. Michael, Christopher G., *Counsel of Record for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
108. Miyares, Jason, *Counsel for Amicus Curiae Commonwealth of Virginia*;
109. Modern Markets Initiative, Inc., *Sponsor of Funding for Brief of Amici Curiae S.P. Kothari and James Overdahl*;
110. Molzberger, Michael K., *Counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
111. Montgomery, Sophia W., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
112. Moody, Ashley, *Counsel for Amicus Curiae State of Florida*;
113. Mooney, Rep. Alex X., *Amicus Curiae*;
114. Moran, Sen. Jerry, *Amicus Curiae*;
115. Morris, Andrew J., *Counsel of Record for Amicus Curiae New Civil Liberties Alliance*;
116. Morrissey, Patrick, *Counsel for Amicus Curiae State of West Virginia*;
117. Murrill, Liz, *Counsel for Amicus Curiae State of Louisiana*;
118. Nabors, David A., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
119. Nasdaq BX, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
120. Nasdaq GEMX, LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;

121. Nasdaq, Inc. (Nasdaq: NDAQ), *Parent Company of Intervenors Nasdaq BX, Inc., Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
122. Nasdaq ISE, LLC, *Intervenor and Plan Participant of Intervenor Consol- idated Audit Trail, LLC*;
123. Nasdaq MRX, LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
124. Nasdaq PHLX LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
125. Nasdaq Stock Market LLC, The, *Intervenor and Plan Participant of Inter- venor Consolidated Audit Trail, LLC*;
126. New Civil Liberties Alliance, *Amicus Curiae*;
127. New York Stock Exchange LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
128. Norman, Rep. Ralph, *Amicus Curiae*;
129. NYSE American LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
130. NYSE Arca, Inc., *Intervenor and Plan Participant of Intervenor Consoli- dated Audit Trail, LLC*;
131. NYSE Chicago, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
132. NYSE National, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
133. Oliwenstein, David, *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
134. Orr, Caleb, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
135. Overdahl, James, *Amicus Curiae*;

136. Paul, Weiss, Rifkind, Wharton & Garrison LLP, *Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.*;
137. Paxton, Ken, *Counsel for Amicus Curiae State of Texas*;
138. Phillips, David, *Counsel for Petitioner Citadel Securities LLC*;
139. Pillsbury Winthrop Shaw Pittman LLP, *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
140. Quinn Emanuel Urquhart & Sullivan, LLP, *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
141. Rabbitt, Brian C., *Counsel for Petitioner Citadel Securities LLC*;
142. Reisner, Lorin L., *Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.*;
143. Reyes, Sean, *Counsel for Amicus Curiae State of Utah*;
144. Ricketts, Sen. Pete, *Amicus Curiae*;
145. Rokita, Theodore E., *Counsel for Amicus Curiae State of Indiana*;
146. Rose, Rep. John, *Amicus Curiae*;
147. Roth, Yaakov M., *Counsel for Petitioner Citadel Securities LLC*;
148. Schulp, Jennifer, *Counsel for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
149. Schwartz, Yishai, *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu*

Financial, Inc.;

150. Scott, Sen. Tim, *Amicus Curiae*;
151. Securities Industry and Financial Markets Association, *Amicus Curiae*;
152. Self, Rep. Keith, *Amicus Curiae*;
153. Shanmugam, Kannon K., *Counsel of Record for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;*
154. Skorup, Brent, *Counsel of Record for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
155. Sobel, Zachary J., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
156. State of Alabama, *Amicus Curiae*;
157. State of Arkansas, *Amicus Curiae*;
158. State of Florida, *Amicus Curiae*;
159. State of Georgia, *Amicus Curiae*;
160. State of Idaho, *Amicus Curiae*;
161. State of Indiana, *Amicus Curiae*;
162. State of Iowa, *Amicus Curiae*;
163. State of Kansas, *Amicus Curiae*;
164. State of Louisiana, *Amicus Curiae*;
165. State of Mississippi, *Amicus Curiae*;
166. State of Missouri, *Amicus Curiae*;

167. State of Montana, *Amicus Curiae*;
168. State of Nebraska, *Amicus Curiae*;
169. State of New Hampshire, *Amicus Curiae*;
170. State of North Dakota, *Amicus Curiae*;
171. State of Ohio, *Amicus Curiae*;
172. State of South Carolina, *Amicus Curiae*;
173. State of South Dakota, *Amicus Curiae*;
174. State of Texas, *Amicus Curiae*;
175. State of Utah, *Amicus Curiae*;
176. State of West Virginia, *Amicus Curiae*;
177. Stern, Eric E., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.*;
178. Thoma Bravo LP, *Owner of 10% or Greater Interest in Nasdaq, Inc.*;
179. Torridon Law PLLC, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
180. Unikowsky, Adam G., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
181. U.S. Securities and Exchange Commission, *Respondent*;
182. Vanguard Group, Inc., *The, Owner of 10% or Greater Interest in Cboe Global Markets, Inc.*;
183. Virtu Financial, Inc., *Amicus Curiae*;
184. Watkins, Devin, *Counsel of Record for Amicus Curiae Competitive Enterprise Institute*;
185. Weber, Rep. Randy, *Amicus Curiae*;

186. Willkie Farr & Gallagher LLP, *Counsel for Amicus Curiae Futures Indus- try Association*;
187. Wilson, Alan, *Counsel for Amicus Curiae State of South Carolina*;
188. Womack, Rep. Steve, *Amicus Curiae*;
189. Wrigley, Drew H., *Counsel for Amicus Curiae State of North Dakota*;
190. Yost, Dave, *Counsel for Amicus Curiae State of Ohio*.

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rules 26.1-1 through -3, undersigned counsel for Proposed Intervenor Consolidated Audit Trail, LLC, hereby certifies that Consolidated Audit Trail, LLC, has no parent corporation, and that the following three publicly held companies have an indirect ownership interest in Consolidated Audit Trail, LLC, of 10% or more: Cboe Global Markets, Inc. (BATS: CBOE); Intercontinental Exchange, Inc. (NYSE: ICE); and Nasdaq, Inc. (Nasdaq: NDAQ).

Date: December 22, 2024

/s/ Ian Heath Gershengorn
Ian Heath Gershengorn

*Counsel of Record for Intervenor
Consolidated Audit Trail, LLC*

NOTICE OF INTENT TO PARTICIPATE IN ORAL ARGUMENT

Consolidated Audit Trail, LLC (“CAT LLC”) hereby files this notice of its intent to participate in oral argument in this matter to address arguments raised in its brief and to protect its interests in this litigation. CAT LLC states as follows:

1. CAT LLC is a party to this case, participating as an intervenor in support of Respondent United States Securities and Exchange Commission (“SEC”). In particular, the self-regulatory organizations (“SROs”) that are participants in CAT LLC have built, operated, and, until recently, alone shouldered the costs of the Consolidated Audit Trail (“CAT”), the program that is the subject of this litigation. As a result, CAT LLC and its participants have a unique interest in and perspective on the arguments before this Court. *See* Consolidated Audit Trail, LLC’s Motion for Leave to Intervene at 4-5, ECF No. 30 (detailing CAT LLC’s unique interests in this appeal).

2. This Court routinely allows intervenors in administrative law cases to participate in oral argument. *See, e.g.,* Docket, *Autauga Cnty. Emergency Mgmt. Comm’n Dist. v. FCC*, No. 19-15072 (11th Cir. Feb. 9, 2021) (intervenor allowed to participate in oral argument); Docket, *Ala. Power Co. v. EPA*, No. 11-11549 (11th Cir. Oct. 2, 2012) (same); Docket, *Georgia v. U.S. Army Corps of Eng’rs*, No. 02-10135 (11th Cir. Apr. 19, 2002) (same).

3. CAT LLC has conferred with counsel to all parties. No party opposes CAT LLC's participation in oral argument.

4. The SEC has agreed to split its argument time with CAT LLC. The SEC will argue for ten minutes, and CAT LLC will argue for five minutes.

For the foregoing reasons, CAT LLC intends to participate at oral argument.

Respectfully submitted,

Date: December 22, 2024

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

Counsel of Record

Adam G. Unikowsky

Elizabeth B. Deutsch

Jonathan J. Marshall

Sophia W. Montgomery

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Counsel for Intervenor

Consolidated Audit Trail, LLC

CERTIFICATE OF COMPLIANCE

I certify that this Notice complies with (1) the type-volume limitations of Federal Rule of Appellate Procedure 27(d)(2)(A) because it contains 277 words, excluding any parts exempted by Rule 27(a)(2)(B); and (2) the typeface and type-style requirements of Rule 27(d)(1)(E) because it has been prepared in 14-point Times New Roman (a proportionally spaced typeface) using Microsoft Word.

Date: December 22, 2024

/s/ Ian Heath Gershengorn
Ian Heath Gershengorn

*Counsel of Record for Intervenor
Consolidated Audit Trail, LLC*

CERTIFICATE OF SERVICE

I hereby certify that on this day, I electronically filed the foregoing Notice with the Clerk of the Court for the United States Court of Appeals for the Eleventh Circuit by using the appellate CM/ECF system, which will send notice to all the parties.

Date: December 22, 2024

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

*Counsel of Record for Intervenor
Consolidated Audit Trail, LLC*